

Sachin v. State of U.P. and Another

High Court of Judicature at Allahabad · Division Bench · 6 July 2022 · Writ - C No. - 18265 of 2022 · **Writ disposed; para 6.8 objection permitted; coercive action stayed.**

HEADNOTE

Without examining the merits of a demand notice dated 5 December 2020, the Allahabad High Court disposed of the writ by granting liberty to object under para 6.8 of the U.P. Electricity Supply Code, 2005, directing time-bound disposal after hearing, and staying coercive recovery for eight weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

The petitioner, Sachin, filed Writ-C No. 18265 of 2022 in the Allahabad High Court seeking certiorari to quash a demand notice dated 5 December 2020 issued by respondent no. 2, the Executive Engineer. Counsel for the Executive Engineer stated on instructions that the petitioner could file an objection against the impugned demand, which would be decided in accordance with law within a time-bound period. The Division Bench heard counsel for the petitioner, the State, and the licensee.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection-to-demand-alternate-remedy

HOLDING

Without expressing any opinion on merits, the writ is disposed of with liberty to the petitioner to submit an objection under para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks; if so submitted, respondent no. 2 shall decide it in accordance with law within the next four weeks after affording a reasonable opportunity of hearing. Coercive action on the impugned demand is stayed for eight weeks or until disposal of the objection, whichever is earlier. ¶ 4-5

PRINCIPLE TAGS

alternative-remedy-statutory-appeal-6.8 The Court declined to examine the demand on merits and relegated the consumer to an objection under para 6.8. ¶ 4

assessment-6.8-alternate-remedy The impugned demand is left to be tested in a para 6.8 objection, to be decided after hearing within a fixed time, with a short stay of coercive action. ¶ 4-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE DEMAND NOTICE DATED 05.12.2020

Writ disposed without opinion on merits; objection left to the para 6.8 forum. ¶ 4